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AI action plan commentary

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Laws for Training Data

AI models require massive datasets to function, but unauthorized scraping of copyrighted works has led to legal disputes. Content creators fear losing control over their work, while AI developers argue that training data is essential for progress. Current copyright laws were not designed for AI, creating **legal uncertainty that primarily benefits Big Tech with legal teams.**

Proposed Solutions:

- **Expand fair use protections** to allow AI models to train on data **at least 10 years old** (or a similar threshold). This balances the needs of **content creators and AI developers**, ensuring older works can contribute to innovation without harming recent creators.
- **Encourage licensing agreements** while requiring **medium and large businesses** to **fully disclose** their training materials. This **minimizes legal disputes** and ensures **a fair competitive environment**.
- **Government-funded materials**, especially **scientific research and publicly funded datasets**, should be **immediately and freely available**, even if originally behind a paywall.
- **Enforce explicit disclosure requirements** for companies training models on **non-public data**, ensuring transparency in AI development.
- **Establish penalties for violations**, ensuring companies **cannot train models on copyrighted, non-fair-use material** without consequences.

Preventing AI from Concentrating Power in Capital

AI has the potential to **consolidate wealth and power**, disproportionately benefiting **capital over labor**. This is **the greatest risk of AI**. To counter this, **legislation must prioritize individuals and small businesses**, ensuring AI remains **a tool for broad innovation, not just corporate monopolies.**

Open-source AI is crucial—while it benefits large corporations, for **small businesses**

and individuals, it determines whether they can innovate or remain dependent on tech giants. Without truly open models, small enterprises are forced into expensive cloud AI services, where **access, pricing, and innovation are dictated by a few dominant companies.**

Proposed Solutions:

- **Legally define what qualifies as "open-source AI."** Should this include **just model weights and code**, or also **training data and methodologies**? A clear legal framework prevents corporations from exploiting vague definitions.
- **Strengthen and enforce anti-monopoly laws**, preventing Big Tech from using **licensing loopholes** (e.g., Meta's "open weights but closed license" model) to block competition.
- **Require that AI models developed with government funds** (e.g., university research or public-sector projects) **be fully open-source**, including **weights, training data, and methodologies.**
- **Fund independent open-source AI projects** (such as Hugging Face's BLOOM, EleutherAI, and Mistral) to **foster competition and decentralization.**
- **Provide tax incentives** for businesses contributing to open-source AI, similar to **existing open-source software tax credits.**

AI Education & Workforce Development

To **rapidly upskill the workforce**, the focus should be on **short-term, high-impact AI training programs** rather than traditional long-degree programs.

Proposed Solutions:

- **Expand Title IV eligibility** to cover **short-term AI programs**, including coding boot camps and online AI certifications.
- **Permit more flexible accreditation models** for **industry-recognized AI and tech certifications**, ensuring high-quality programs without unnecessary bureaucratic barriers. **Set minimum standards** to protect students from predatory, low-value programs.
- **Allow businesses to directly fund AI education** through **job placement agreements**, ensuring students graduate with employment opportunities.
- **Extend federal Income-Driven Repayment (IDR) plans** to include **certificate programs**, preventing students from being burdened with high loan payments after short-term AI training.
- **Provide federal and state grants for in-demand AI certificate programs**, similar to **existing workforce development grants for skilled trades.**
- **Expand Pell Grants** to include **short-term AI training courses.**
- **Reduce credit barriers for AI education loans**, making funding accessible to a wider range of students.
- **Expand loan eligibility** to cover **very short courses (as short as 4 weeks)** to allow for **fast AI upskilling.**

Encourage businesses to create AI apprenticeships, where students can train in AI-related fields **with guaranteed employment pipelines**.

- **Establish retraining programs** for workers displaced by AI, particularly **blue-collar workers** (e.g., truck drivers replaced by self-driving technology).

Nuclear Energy & AI Power Demands

AI requires **massive amounts of energy**, and demand will **only increase**. The current **regulatory framework for nuclear energy is outdated**, making it **nearly impossible** to bring new nuclear power plants online within a reasonable timeframe. Without reform, AI's power demands **will strain the grid**, leading to **higher costs and slower AI adoption**.

Proposed Solutions:

- **Streamline the approval process for new nuclear reactors**. Currently, it takes **10+ years** to approve and construct new reactors. **Bureaucratic delays should be reduced while maintaining rational safety standards**.
- **Fast-track advanced nuclear technologies** such as **molten salt reactors, small modular reactors (SMRs), and thorium-based reactors**. These technologies are **safer and more efficient** than traditional nuclear designs.
- **Limit local overreach and NIMBYism**. Even if federal approvals are streamlined, **local governments can still block nuclear projects**, leading to unnecessary delays.
- **Encourage private investment in nuclear power**, removing unnecessary financial and regulatory barriers. **AI companies should be allowed to develop their own dedicated power sources**.
- **Permit AI data centers to build and operate their own nuclear power plants**, ensuring **stable, independent power sources** for AI clusters.
- **Upgrade aging electrical grids to accommodate AI-driven power demand**. Many regions **cannot currently handle** the increased load from **new AI-focused data centers** without **significant infrastructure investment**.

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